

HOUSE BILL No. 1325

DIGEST OF INTRODUCED BILL

Citations Affected: IC 20-19-3-41.8.

Synopsis: Behavioral intervention and special education. Requires the department of education, in collaboration with the Indiana department of health, the department of child services, and the office of the secretary of family and social services to report and make recommendations concerning behavioral intervention services for children and special education.

Effective: July 1, 2026.

Pfaff, Clere

January 6, 2026, read first time and referred to Committee on Education.



Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

HOUSE BILL No. 1325

A BILL FOR AN ACT to amend the Indiana Code concerning education.

Be it enacted by the General Assembly of the State of Indiana:

1 SECTION 1. IC 20-19-3-41.8 IS ADDED TO THE INDIANA
2 CODE AS A **NEW** SECTION TO READ AS FOLLOWS
3 [EFFECTIVE JULY 1, 2026]: **Sec. 41.8. (a) Not later than October**
4 **1, 2026, the department, in collaboration with the Indiana**
5 **department of health, the department of child services, and the**
6 **office of the secretary of family and social services, shall**
7 **collaborate and submit to the general assembly in an electronic**
8 **format under IC 5-14-16, a report that includes information and,**
9 **as applicable, recommendations on the following:**

10 (1) **The current and projected need for behavioral**
11 **intervention services for children, including estimated costs**
12 **for families, schools, and the justice system.**

13 (2) **An analysis of the implications if children do not receive**
14 **timely and appropriate behavioral intervention services for**
15 **juveniles, including safety and monetary risks.**

16 (3) **Each agency's processes, procedures, and practices**
17 **concerning acute behavioral intervention services for**



children, including navigation assistance offered to families, schools, and other key stakeholders.

(4) A comparative analysis of services provided by each service provider, emphasizing discrepancies in costs for the same or substantially similar services.

(5) Existing initiatives between each agency and other stakeholders to improve awareness, accessibility, cost, and quality of behavioral intervention services for children.

(6) Estimated costs to state agencies for existing, planned, and potential initiatives to improve awareness, accessibility, cost, and quality of behavioral intervention services for children.

(7) Opportunities for efficiencies that could reduce time spent by state employees, individuals, and parents or guardians, as applicable, in pursuit of properly supportive services.

(8) Collecting data on the number of students who are using excess cost funds for residential placement and the cost each public school, including charter schools, expends yearly on required payments to access state funds.

(9) Collecting data on the amount each public school, including charter schools, is expending above state provided funding on developmental preschool.

(10) Collecting data on the number of special education students receiving homebound instruction in each public school, including charter schools, and the associated costs for each public school, including charter schools.

(11) Collecting data on the costs, including transportation and interpreter fees, incurred by each public school, including charter schools, for students who are eligible to enroll in, but choose not to enroll in, the Indiana School for the Blind and Visually Impaired or the Indiana School for the Deaf.

(b) In developing the report, the agencies described in subsection (a) shall seek out and consider perspectives and opinions of key stakeholders, including:

(1) Indiana based organizations dedicated to serving children, including those with high acuity behaviors;

(2) families of children with high acuity behaviors who have attempted to seek timely and appropriate services for their children;

(3) educators responsible for servicing children with high acuity behaviors; and

(4) both elected and appointed officials at the state and local levels in all branches of government who have experiences



1 with observing the affect of children with high acuity
2 behaviors.

3 (c) The department may contract with a third party to prepare
4 the report described under this section.

5 (d) This section expires January 1, 2027.

